Standard Operating Procedure (SOP)

Country Specific Requirements Belgium & Luxembourg

Document Number: IQMS-64489
SSC-PTC-SOP-BELUX-002

Version: 6.0

Effective Date:	2025-11-12
QMS Area:	Quality
QMS Chapter:	4.9 Product Safety, Product Quality and Pharmacovigilance

Applicability

Bayer Level:	CH, PH

This document is electronically approved (signatures on the last page)

Distribution Sheet for Quality Regulations

Division/Business Unit ☒ PH ☒ CH

GBS Location
☐ Global Business Services Barcelona
☐ Global Business Services Costa Rica/Brazil
☐ Global Business Services Manila
☒ Global Business Services Gdansk
☐ Global Business Services India
☐ Global Business Services Dalian
☐ Global Business Services Germany

Region/ Country
☐ Global
☒ Specific Country: Belgium, Luxemburg

Relevance for R&D QMS
☐ Affected
☐ Interface
☒ N/A

Version:	6.0
Document Author(s):	Joanna Słabońska (GPOXV)
Document Approver(s):	CQH: Frederic Van Gijseghem (BBFVG) PTC Team Leader/SME: Katarzyna Mazur-Kominek (GLISG)
Training Role(s):	GBS_GDN_PTC_CLUSTER 3
Relevant Process and Activities:	PTC

Contents

1 Scope and Framework 5
1.1 Scope 5
1.2 Framework 5
2 Abbreviations 5
3 Purpose & Set-Up 5
3.1 Purpose 5
3.2 General guidance 5
3.3 Roles and responsibilities 6
4 Specific requirements regarding PTC handling 7
4.1 Country Specific Requirements listed by different topics 7
4.1.1 General Information 7
4.1.2 Contact list 7
4.1.3 Escalation Rules 7
4.1.4 Pharmacovigilance cases 7
4.1.5 Product Samples 8
4.1.6 Statement letter 9
4.1.7 RQU Contact list 9
4.1.8 List of Local Opportunities Products 9
4.1.9 Data Privacy Requirements 10
4.1.10 Gathering additional information (including obtaining translation) 10
4.1.11 Reimbursement and Replacement 10
4.1.12 Mandatory Spot Checks for Translations 11
4.1.13 Exceptions and special cases 12
4.1.14 Others 12
5 Internal References 12
6 External References 12
7 Annexes 14
Annex 1 14
Templates 15
Annex 2 (Sample Pick up) 15
Annex 3 (Acknowledgement Letter) 15
Annex 4 (Response Letter) 15
Annex 5 (Automatic Translation Template - Bayer Translate) 15

1 Scope and Framework

1.1 Scope

Bayer Country Quality Units are accountable for a GMP compliant Product Technical Complaint Management within their respective countries. Within this responsibility they are supported by the respective Global Business Service in process steps like complaint initiation, classification forwarding for investigation to the RQU, and final approval including complaint sample management and reimbursement process.

This SOP defines clear guidance to the Global Business Service regarding all country specific requirements.

1.2 Framework

This SOP is based on principles and requirements outlined in SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

2 Abbreviations

AE	Adverse Event
CMO	Contract Manufacturing Organization
CQH	Country Quality Head
CQU	Country Quality Unit
GBS	Global Business Service
OTC products	Over-the-counter products
PTC	Product Technical Complaint
PV	Pharmacovigilance
RQU	Responsible Quality Unit

3 Purpose & Set-Up

3.1 Purpose

Country Specific Requirements for Belgium and Luxembourg are described in this SOP, regarding e.g. Data Privacy, Sample Handling Process, Reimbursement Process, Contacts, escalation rules.

During the processing of all PTCs by Bayer owned Global Business Service all country specific requirements are considered and followed besides the general complaint handling described in the SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

3.2 General guidance

The employees of Global Business Services follow the SOP during complaint processing in the complaint database on behalf of the Country Quality Units.

3.3 Roles and responsibilities

GBS team	- Enters PTCs, Suspected Counterfeit Incidents and Usability Issues according to defined timelines in a timely manner, entering them into the global complaint database in English language - Organizes missing information and asks CQU for any support contacting the complainant if not possible/allowed by GBS (e.g. data privacy, non-hosted language) - Performs the initial intake of complaints after receipt - Informs the CQU about all PTCs where local authorities are involved, about all potential counterfeits and any other cases described in this SOP - Informs the respective PV about all PTCs with a potential associated AE or LODE or potentially reportable medical device complaints, including the unique complaint database number and all relevant follow-up information - Forwards the case to the respective RQU for further assessment - Initiates the process of sample shipment if requested by RQU or specified in any other guidance document - Reviews the case for plausibility and closes the complaint case in complaint database - Sends out standard response letters in case it is agreed with the CQU - Supports the process for reimbursement management - Forwards all cases that are not PTCs back to the CQU or to the appropriate function for further processing
Country Quality Head (CQH) / Country Quality Unit (CQU)	- Is responsible for regular KPI evaluation to get overview of complaint activities at the GBS - Supports the GBS in organizing missing complaint information - Organizes the complaint sample and sends it to the RQU if requested. - Sends out the Response Letters to the complainants as requested and agreed with the GBS - Contacts local CMO on request of GBS as RQU to get investigation reports from the respective CMO - Ensures that all changes within the country law and regulation are directly notified to the GBS and that the Country Specific SOP is updated

4 Specific requirements regarding PTC handling

4.1 Country Specific Requirements listed by different topics

Description	Assigned Roles & Document Reference

4.1.1 General Information

In cluster BELUX – Belgium and Luxembourg the company operates under one legal entity with distributor status:

Bayer SA-NV

The CQH office is in Diegem.

4.1.2 Contact list

CQH BELUX- Frederic Van Gijseghem *frederic.vangijseghem@bayer.com*

General e-mail CQU: *quality-belux@bayer.com*

CQH deputy: *Lukas.severens@bayer.com*

Remark:
Current name and e-mail address of CQH and CQH deputy are found on the QINT SharePoint:

https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list

4.1.3 Escalation Rules

GBS

The CQH and the CQH deputy should be notified via notification action in the complaint database about any complaint case referring to at least one of the following situations:

- Suspected Counterfeit Cases
- Any cases involving Health Authorities
- Cases with final risk category high or medium (escalation via immediate action)

Remark:
The current names and e-mail addresses of the CQH and the CQH deputy are found on the QINT SharePoint:
https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list

4.1.4 Pharmacovigilance cases

GBS

If a complaint case is related to any type of Adverse Event, the local pharmacovigilance department has to be informed via the following e-mail address: *drugsafety.benelux@bayer.com* unless PV sends a PTC initiation request about PTC+AE to the GBS, then GBS has to provide local pharmacovigilance with complaint number.

Description	Assigned Roles & Document Reference
E-mail coming from global pharmacovigilance PV-PQS from address *PV-PQS@bayer.com* will be initially assessed by CQU and if the complaint will be a PTC case, this case will be forwarded to GBS.	
4.1.5 Product Samples	GBS

Intrauterine devices (IUD)

If a complaint concerning IUD is submitted to the sales representative, and sample is declared by the complainant to be available, sales representative brings the sample to the CQU office in Belgium. Then the CQU arranges sample shipment to the responsible RQU. The details for complaint entry in IQMS in Sample Activity section are sent by the CQU to the GBS.

Betaconnect

Betaconnect is a medical device with an expiration date. Complaints regarding Betaconnect device are submitted by a pharmacy to stakeholder management officer who fills out the form and sends it to GBS. If the sample (device) is available and not expired, pharmacy sends it to the Bayer warehouse. GBS informs the CQU about the availability of the sample, and the CQU arranges sample shipment to the RQU (B&O Medicom). If the device is expired, the complaint is entered into IQMS as Usability Issue without sample shipment.

Samples from pharmacy/hospital

In order to retrieve sample GBS officer has to ask the complainant about pick-up date, time and address (standard templates are added in **Annex 2**) and forward this information to the CQU, then the CQU is contacting third party provider to order sample shipment.

Sales representative

If a complaint is communicated to a sales representative, then the sales representative should be asked to retrieve the sample. If the sample is known to be contaminated, it should not be sent to the CQU, but pictures of the sample should be requested, and the sample discarded.

Wholesalers

If an error in product is identified by a wholesaler or a product has been returned to the wholesaler, the wholesaler sends the complaint packages to Bayer warehouse in Belgium. The warehouse contacts the *customersolutions.be@bayer.com*, and they are forwarding the complaint e-mail to GBS without delay.

Patients submitting complaints directly to GBS

If a private customer submits a complaint to GBS, the customer is asked to take it to the pharmacy in which the complaint product was bought, and the customer receives new package.

Description	Assigned Roles & Document Reference
4.1.6 Statement letter **Acknowledgement Letter when a complaint comes in:** After a complaint is handed in, an immediate acknowledgement of receipt is sent out to the complainant. If there are missing data in the initial complaint (for ex. batch number), the acknowledgment letter will be expanded with the request for providing missing data by the complainant. - Standard templates are added in the **Annex 3** (Acknowledgment letter). In cases when the use of BELUX communication templates provided in Annexes is not sufficient to receive necessary information from the consumer, client or other reporter, GBS Team uses Bayer Translate AI machine translator (*https://translate.int.bayer.com/translation*) to provide the required message in Dutch, French. The message is sent with both translated Dutch/French and original English text using a template with the statement attached, provided in Annex 5. **Response Letter after closing:** Standard response letters are sent out without involvement of the CQU. - Standard templates are added below in the **Annex 4** (French and Dutch response letter) **Exception:** # Confirmed final risk categories high and medium # In case of PTC + AE: involvement of PV # Authority responses	GBS
4.1.7 RQU Contact list A table with all available products in the country, needed for entry into the complaint database, is available on SharePoint: go/ptcops. For CH products registration status in the respective country as well as Manufacturing Site are available via SYNAPS: go/synaps. List with the respective RQU contact names are provided by the Divisional Quality Assurance function and available on the SharePoint: PH: *PH RQU responsible list_HJ.xlsx* CH: *IQMS_MASTER LIST COMPLAINT RESPONSIBILITIES.xlsx*	GBS
4.1.8 List of Local Opportunities Products n/a	

Description	Assigned Roles & Document Reference

4.1.9 Data Privacy Requirements

Belgium, Luxembourg and Poland are both members of the European Union, hence there is no restrictions in personal data flow. Every e-mail should contain data privacy statement.

4.1.10 Gathering additional information (including obtaining translation)

GBS
CQU

In case when the CQU receives a complaint firstly by a phone, then Product Complaint Form (see **Annex 1**) is used to document received information. The CQU sends this form to the GBS via e-mail as soon as possible, because timeline starts when phone complaint is received by the CQU.

The written complaints will be placed either in French, Dutch or English language. French and Dutch are not hosted languages and the complaints have to be translated by contacting Bayer Service Translation Office.

If a situation occurs, that there is only a phone number given in the complaint, and any information is missing (for ex. batch number), contact CQU and ask for support in calling the complainant.

4.1.11 Reimbursement and Replacement

GBS

Eligibility for Reimbursement
Reimbursement for a product is granted when the sample is declared available and delivered to either a Bayer warehouse or the CQU office.

Requesting a Credit Note

- **Non-Radiology**
  If the sample is available, concerns only 1 package, and is not a component of a radiology device, please request a credit note by sending an email to *customerservice.be@bayer.com*. Include the following information in your email:
  - Recipient's name
  - Wholesaler (if applicable)
  - Specific details of the request

- **Radiology**
  If the sample is a radiology device component, send your request with the same information to *beneluxcustomersupport@bayer.com*.

- **Multiple Packages:**
  If the complaint involves more than 1 package, email *quality-belux@bayer.com* for approval of the credit note. Once approved, the crediting will be arranged by CQU.

Pharmacies

Description	Assigned Roles & Document Reference

Pharma Products:

Pharmacies will receive credit through a wholesaler.

Consumer Health Products:

- Pharmacies supplied by wholesalers will be credited through the wholesaler.
- If a pharmacy purchased the product directly from Bayer, they will be credited directly.
- Hospital pharmacies can be credited directly.

Reimbursement with Photo Evidence:

If a reimbursement was requested but the sample cannot be collected, and a photo of the sample has been provided, please consult with CQU regarding the reimbursement.

Special Cases:

Betaconnect

The replacement of Betaconnect devices is handled by the stakeholder management officer.

Direct Complaints to GBS form patient/consumer:

If a complaint is submitted to a pharmacy, the customer will receive a new package of the product. Since private customers cannot be credited directly, the sample should be returned to the pharmacy. The pharmacy will then receive a credit note and refund the complainant.

4.1.12 Mandatory Spot Checks for Translations

GBS

For all countries where the complaints are sent out for translation to the translation tool, once a year mandatory spot checks must be performed. 5% of all complaint numbers per year should by checked by native speaker (based on random selection), e.g. CQU. Important is to check the “original income text” with “translated text” provided by translation provider.

The GBS is the owner of the process and start this action. The GBS leads the process, picks the cases and provides report to the CQU. The CQU checks the translation and indicates the deviations.

Acceptance Criteria:

- No Major translation deviations
- Total number of Minor translation deviations is less than 5%.

. Deviations in the translation can be described as Minor or Major.

- Minor translation deviations are deviations where a single word or short section of a sentence has been insufficiently translated, but the essence or meaning of the original message is still captured.
- Major translation deviations are deviations where a single word or short section has been incorrectly translated (for example by the introduction of a new word or exclusion

Description	Assigned Roles & Document Reference

of a word from the original complaint in the translated version) which results in an incorrect essence or meaning in the translation of the original message.

In case of a major translation deviation and exceeding 5% minor cases, the GBS will be informed promptly to open a deviation in the complaint database and to ensure appropriate CAPAs.

In addition, the translation office needs to be informed.

4.1.13 Exceptions and special cases

Animal health products: both PTC and AE reports for the animal health products have to be forwarded to the address: *PV.Benelux@elancoah.com*

4.1.14 Others

n/a

5 Internal References

- SSC-PTC-SOP-001 “Manage Product Technical Complaints and Suspected Counterfeit Incidents in GBS”

6 External References

- N/A

History of changes

Version	Significant changes with respect to previous version	Effective Date *(yyyy-mm-dd)*
1&2	New document	2020-03-13
3	# Chapter 3.3. SSC responsibilities updated # Chapter 4.1.6 Escalation rules updated # Chapter 4.1.6 Template in country specific languages are added as a protected annex to the Country Specific SOP # Chapter 4.1.10 Described how to use Annex 1 for CQU to obtain complaint by phone # New chapter 4.1.12 Mandatory Spot Checks for Translation # Annex 1 (Product Complaint Form) added # Annex 2 (sample pick-up) added # Annex 3 (Acknowledgment letter) added # Annex 4a (Dutch response letter) added # Annex 4b (French response letter)	2021-05-23
4	# Chapter 4.1.8- deletion of Ernst Richter products which are no longer commercialized in Belgium # Chapter 4.1.9- country correction	2022-03-14
5	# SSC changed to GBS # Chapter 4.1.6 Annex 5 Bayer Translate template instruction added # Annex 5 (Bayer translate template) added # Chapter 4.1.11 Reimbursement based on the photo instruction added # Chapter 4.1.13 Animal health products workflow added # New Privacy Statement links provided by the CQU were added into the templates	2023-09-11
6	# Whole document text - naming changed = Dev@Com to IQMS # Roles and responsibilities updated based on SSC-PTC-SOP-001 v.6.0 # Section 4.1.2 Reference to QINT SharePoint updated # Section 4.1.3 Escalation rules: escalation on initial risk category removed, escalation regarding final risk categories changed to high and medium according to SSC-PTC-SOP-001 v.6.0. Reference to QINT SharePoint updated. # Chapter 4.1.5 Product sample are described based on category # Chapter 4.1.11 Reimbursement procedure rewrite # Annex 4a and 4b are combined in one Annex 4	See Coversheet

7 Annexes

Annex 1

Product Complaint Form

Complaint created (date)……
Complaint received (date) ……

Product information:	
Product name	
Batch / lot number	
Dosage form *(cream, tablet, capsule, etc.)*	
Package type/size	
Number of packages	
Sample available?*	Yes/No
*Sample available = please keep for further potential shipment	

Complaint information:	
Complaint description (defect description, is it suspected counterfeit case, etc.)	
Adverse event reported?	Yes/No
Does the complainant expect a response from Bayer?**	
**By requesting a response, the Complainant agrees to his/hers contact data being processed by Bayer for the purpose of providing the answer to the submitted complaint *(the exact sounding to be aligned with legal)*	

Complainants' contact information attention: in the countries with special Data Privacy regulations to be replaced by the complainant code number (to be given by CQU)	
Name and surname	
E-mail address	
Telephone	
Home address	

Sender (if other than Complainant, e.g. a pharmacy)	
Senders' Name (Legal entity)	
Address	
E-Mail address	
Telephone number	

Any additional information	

Templates

Annex 2 (Sample Pick up)



BELUX sample pick-up

Annex 3 (Acknowledgement Letter)



BELUX ackowledment

Annex 4 (Response Letter)



Response letter

Annex 5 (Automatic Translation Template - Bayer Translate)



Automatic transaltion

Task: Content Approval Verdict: Approve changes & release Approval to be made Effective	Frederic Van Gijseghem (frederic.vangijseghem@bayer.com) Approver - Content 28-Oct-2025 08:28:19 GMT+0000
Task: Final Approval Verdict: Approve changes & release Final Approval to be made Effective	katarzyna mazur kominek (katarzyna.mazur-kominek@bayer.com) Approver 28-Oct-2025 10:16:16 GMT+0000